

DATED

19th March

2026

(1) TENDRING DISTRICT COUNCIL

and

(2) AKERS ASSOCIATES LIMITED and EUROVIEW MANUFACTURING LIMITED

AGREEMENT

Entered into pursuant to the provisions of section 106 of the Town and Country Planning Act 1990
(as amended) and relating Land to The West of Sladburys Lane Clacton On Sea
Planning Reference: 25/01011/OUT

Table of Contents

1	Interpretation	4
2	Effect Of This Agreement.....	8
3	Commencement Date	9
4	Obligations Of The Parties	10
5	Termination Of This Agreement	13
6	Notices	14
7	Costs Of This Agreement.....	14
8	Determination Of Disputes	15
9	Community Infrastructure Levy	16
10	Jurisdiction.....	17
11	Section 73.....	17
12	Data Protection.....	17
13	Execution.....	18
	Schedule1: RAMS Contribution	19
	Schedule 2: Affordable Housing: Part One	20
	Schedule 2: Affordable Housing: Part Two	26
	Schedule 3: BNG Monitoring Fee	28
	Schedule 4: District Council Covenants	30
	Annex One - Site Plan	31

BETWEEN:

- (1) **TENDRING DISTRICT COUNCIL** of Town Hall, Station Road, Clacton-on-Sea, Essex, CO15 1SE ("**the District Council**");
 - (2) **AKERS ASSOCIATES LIMITED** (Co. Regn. No. 10908677) of 34 Branscombe Close, Frinton-On-Sea CO13 9LE and **EUROVIEW MANUFACTURING LIMITED** (Co. Regn. No. 02774569) of Kingfisher House, 11 Hoffmanns Way, Chelmsford CM1 1GU ("**the Owner**");
- together 'the Parties'

BACKGROUND

- (A) For the purposes of the 1990 Act (as defined herein), the District Council is the local planning authority for the area within which the Site (as defined herein) is located and is the authority who is entitled to enforce the obligations contained in this Agreement.
- (B) The Owner is the freehold owner of the Site and ownership is registered at HM Land Registry under Title Number AA68459 (excluding the access onto the highway at Sladbury's Lane as shown on the Site Plan) free from any encumbrances that would prevent the Owner from entering into this Agreement.
- (C) The Planning Application (as defined herein) was submitted to the District Council for the Development (as defined herein) and was refused by the District Council on 26 January 2026.
- (D) The Owner has appealed to the Planning Inspectorate against the District Council's decision to refuse the Planning Application, which is pending and has been given appeal reference 6004354.
- (E) The District Council considers that if the Inspector is minded to grant the Planning Permission it is expedient in the interests of the proper planning of its area that provision should be made for regulating and facilitating the Development in the manner set out in this Agreement in compliance with Regulation 122 of the Community Infrastructure Levy Regulations 2010.
- (F) The District Council and the Owner (as defined herein) have agreed to enter into this Agreement with the intention that the obligations contained in this Agreement may be enforced by the District Council against the Owner and any successors in title.

OPERATIVE PROVISIONS

1 INTERPRETATION

1.1 In this Agreement, the following words and expressions have the following meanings:

"1990 Act"	means the Town and Country Planning Act 1990, as amended;
"Appeal"	means the appeal made to the Secretary of State against the refusal of planning permission pursuant to the Planning Application and allocated appeal reference 6004354 by the Planning Inspectorate
"CIL Regulations"	means the Community Infrastructure Levy Regulations 2010 (as amended)
"CIL Tests"	means the tests set out in regulation 122(2) of the CIL Regulations
"Commencement Date"	means, subject to clause 3.2, the date on which the Development is Commenced by the carrying out on the Site pursuant to the Planning Permission of a material operation as specified in section 56(4) of the 1990 Act;
"Commencement of Development"	means, subject to clause 3.2, the carrying out on the Site pursuant to the Planning Permission of a material operation as specified in section 56(4) of the 1990 Act and the use in this Agreement of the terms "Commence the Development" and "Commenced" shall be construed accordingly;
"District Council Monitoring Fee"	shall mean a fee of £1,500 (one thousand five hundred pounds) due to the District Council under this Agreement towards the District Council's reasonable and proper administration costs of monitoring the performance of the planning obligations that the Owner

	is required to observe and perform pursuant to the terms of this Agreement;
"Decision Letter"	means the decision letter issued by the Inspector in determining the Appeal or where the Secretary of State recovers the Appeal for determination the decision letter of the Secretary of State;
"Development"	means the development set out in the Planning Application and permitted by the Planning Permission;
"Dwelling"	means a house constructed as part of the Development and the curtilage related thereto and the use in this Agreement of the term "Dwellings" shall be construed accordingly;
"Index"	means the "All Items" index figure of the Index of Retail Prices published by the Office for National Statistics or any such alternative index or comparable measure of price inflation as shall replace such index or as the District Council reasonably requires;
"Index Linked"	means increased by applying the RPI All Items Index: Jan 1987 = 100 published by the Office for National Statistics using the formula $A = B \times C \text{ divided by } D$ - where A is the amount actually payable - B is the amount specified as payable - C is the RPI All Items Index two months before the date of payment - and D is the RPI All Items Index two months before the date of this Agreement;
"Inspector"	an inspector appointed by the Secretary of State to determine the Appeal
"Market Dwellings"	Means all Dwellings to be constructed as part of the Development which are not Affordable Housing Dwellings as defined in Schedule 2 herein;

"Notice of Commencement"

means notice in writing to advise of the proposed Commencement Date;

"Notice of Occupation"

means notice in writing to advise that the Dwelling to which the notice relates has been Occupied;

"NPPF"

means the National Planning Policy Framework first published in March 2012 and last updated in December 2024 as amended from time to time;

"Occupation"

means beneficial occupation for the purposes permitted by the Planning Permission and shall not include occupation for the construction of the Development and shall not include daytime occupation by workmen involved in the construction of the Development or in so far as such uses are ancillary to the construction of the Development the use of finished buildings for sales or purposes for use as temporary offices or for show homes or for the storage of plant and materials or in relation to security operations and the use in this Agreement of the terms **"Occupy"** and **"Occupied"** and **"Occupancy"** shall be construed accordingly;

"Planning Application"

means the planning application in respect of the Site which the District Council has given the reference 25/01011/OUT for Outline Planning Application (all matters reserved) - Up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.

"Planning Permission"

means the planning permission granted pursuant to the Appeal by the Secretary of State or an Inspector appointed by the Secretary of State;

"Site"

means the land known as Land to the West of Sladburys Lane Clacton on Sea in so far as such land

is registered at HM Land Registry under title number AA68459 and which land is shown for identification purposes only edged red on the Site Plan;

**“Sterling Overnight Index
Average (SONIA) Rate”**

means an assessment of the rate of interest the District Council can expect to earn on investments through the British Sterling market, the rate used being the average interest rate at which banks are willing to borrow sterling overnight from other financial institutions and other institutional investors and SONIA Rate shall be construed accordingly

“Site Plan”

means the plan named 'Location Plan' a copy of which drawing is annexed hereto as Annex 1;

“Working Days”

means any day(s) upon which banks in the City of London are open to the general public.

1.2 In this Agreement:

1.2.1 the clause or Schedule headings do not affect its interpretation;

1.2.2 unless otherwise indicated, references to clauses and Schedules are to clauses of and Schedules to this Agreement and references in a Schedule to a Part or paragraph are to a Part or paragraph of that Schedule;

1.2.3 references to any statute or statutory provision include references to:

1.2.3.1 all Acts of Parliament and all other legislation having legal effect in the United Kingdom as enacted at the date of this Agreement as directly or indirectly amended, consolidated, extended, replaced or re-enacted by any subsequent legislation; and

1.2.3.2 any orders, regulations, instruments or other subordinate legislation made under that statute or statutory provision;

1.2.4 references to the Site include any part of it;

- 1.2.5 references to any party in this Agreement shall include the successors in title of that party. In addition, references to the District Council shall include any successor local planning authority exercising planning powers under the 1990 Act;
 - 1.2.6 "including" means "including, without limitation";
 - 1.2.7 any covenant by the Owner not to do any act or thing includes a covenant not to permit or allow the doing of that act or thing;
 - 1.2.8 words importing the singular meaning where the context so admits shall include the plural meaning and vice versa;
 - 1.2.9 words of the masculine gender include the feminine and neuter genders and words denoting natural persons include companies corporations and firms and all such words shall be construed interchangeably in that manner;
 - 1.2.10 words denoting an obligation on a party to do any act matter or thing shall include an obligation to procure that it be done and words placing a party under a restriction shall include an obligation not to cause permit or allow infringement of the restriction;
- 1.3 The parties to this Agreement do not intend that any of its terms will be enforceable by virtue of the Contracts (Rights of Third Parties) Act 1999 by any person not a party to it and any such rights that arise under that Act are hereby excluded.

2 EFFECT OF THIS AGREEMENT

- 2.1 This Agreement is made pursuant to Section 106 of the 1990 Act and is binding on the Owner and their successors in title. To the extent that they fall within the terms of Section 106 of the 1990 Act, the obligations contained in this Agreement are planning obligations for the purposes of Section 106 of the 1990 Act and are enforceable by the District Council.
- 2.2 To the extent that any of the obligations contained in this Agreement are not planning obligations within the meaning of the 1990 Act, they are entered into pursuant to the powers contained in Section 111 of the Local Government Act 1972, Section 1 of the Localism Act 2011 and all other enabling powers.
- 2.3 Nothing in this Agreement restricts or is intended to restrict the proper exercise at any time by the District Council of any of its statutory powers, functions or discretions in relation to the Site or otherwise.

- 2.4 The obligations in this Agreement will not be enforceable against a statutory undertaker after the transfer of statutory apparatus (and any land upon or in which the statutory apparatus is situated) by the Owner to that statutory undertaker.
- 2.5 Nothing in this Agreement prohibits or limits the right to develop any part or the whole of the Site in accordance with a planning permission, other than the Planning Permission, granted after the date of this Agreement, whether or not pursuant to an appeal.
- 2.6 A mortgagee of all or any of the Site will not incur any liability for any breach of the obligations contained in this Agreement unless and until it becomes a mortgagee in possession of the Site or appoints a receiver or administrative receiver under a security.
- 2.7 The obligations in this Agreement will not be enforceable against the individual owners, lessees or occupiers of any Dwellings constructed on the Site pursuant to the Planning Permission or any mortgagee or chargee of such owner, lessee or occupier save for the covenants and exemptions in Schedule 2 of this Agreement in respect of individual owners, lessees or occupiers or mortgagees or Chargees of the Affordable Housing Dwellings.
- 2.8 In the event that the District Council adopts a charging schedule for the purposes of the CIL Regulations and such charging schedule takes effect prior to the date of the Planning Permission the obligations contained in this Agreement which are also covered in such a charging schedule shall cease and no longer be of any effect.

3 COMMENCEMENT DATE

- 3.1 Save in respect of Clause 7 and this clause 3.1 (which will become operative on the date of this Agreement) and in respect of obligations expressly in this Agreement requiring compliance prior to the Commencement Date and which will become operative on the issue of the Planning Permission pursuant to the Appeal this Agreement will come into effect on the Commencement Date.
- 3.2 The Commencement Date and Commencement of Development will not be triggered by any of the following operations:
- 3.2.1 archaeological or site investigations or surveys;
 - 3.2.2 site or soil surveys or site decontamination;
 - 3.2.3 the clearance or demolition of the Site;
 - 3.2.4 works connected with groundworks;

- 3.2.5 works for the provision of drainage or mains services to prepare the Site for development;
- 3.2.6 erection of fencing or boarding;
- 3.2.7 erection of boards advertising the Development (including the erection of advertising hoardings);
- 3.2.8 the construction of a temporary site compound or temporary marketing suite that does not form a structure or part of a structure that will become a Dwelling after its use as a temporary marketing suite;
- 3.2.9 works to the existing public highways and the provision of site access and temporary internal roads; and
- 3.2.10 the laying out and construction of internal estate roads.

4 OBLIGATIONS OF THE PARTIES

- 4.1 The Owner so as to bind the Site covenants with the District Council to comply with the obligations set out in this Agreement as well as the Schedules to this Agreement.
- 4.2 The Owner covenants with the District Council to provide a Notice of Commencement to the District Council not less than ten (10) Working Days prior to the expected Commencement Date.
- 4.3 The Owner covenants with the District Council to provide a Notice of Occupation to the District Council not more than ten (10) Working Days after the First (1st) Dwelling has been Occupied and the Sixth (6th) Dwelling has been Occupied and any further notices as stipulated in the Schedules to this Agreement.
- 4.4 The District Council covenants with the Owner to comply with its obligations set out in the Schedules to this Agreement.
- 4.5 The District Council covenants with the Owner to act reasonably, properly and diligently in exercising its discretion and discharging its functions under this Agreement. In particular, where any notice, consent, approval, authorisation, agreement or other similar affirmation is required under the terms of the Agreement, the District Council will not unreasonably withhold or delay such notice, consent, approval, authorisation, agreement or other similar affirmation Provided Always that such notice, consent, approval, authorisation, agreement

or other similar affirmation may only be given in writing (unless agreed otherwise by the District Council)

- 4.6 Any covenant by the Owner not to do an act or thing shall be deemed to include an obligation to use reasonable endeavours not to permit or suffer such act or thing to be done by another person where knowledge of the actions of the other person is reasonably to be inferred.
- 4.7 Any obligation that prohibits the Owner from allowing or limiting Occupation of the Site until certain events occur shall also be an obligation on the Owner to positively carry out those certain events by no later than the number of occupations set out therein unless the context otherwise requires.
- 4.8 No person will be liable for any breach of the terms of this Agreement occurring after the date on which they part with their interest in the Site or the part of the Site in respect of which such breach occurs but they will remain liable for any breaches of this Agreement occurring before that date. For the further avoidance of doubt neither the reservation of any rights or the inclusion of any covenants or restrictions over the Site or part of the Site in any transfer of the Site will constitute an interest for the purposes of this Clause 4.8.
- 4.9 No compensation shall be payable by the District Council to any party to this Agreement or their successors in title and assigns arising from the terms of this Agreement and unless specified otherwise in this Agreement all works and activities to be executed hereunder (including such as are of a preparatory ancillary or maintenance nature) are (save where expressly provided otherwise) to be at the sole expense of the Owner and at no cost to the District Council.
- 4.10 Representatives of the District Council may enter upon the Site at any reasonable time on reasonable prior written notice giving at least three (3) clear days before such entry is required (unless otherwise agreed with the Owner) (and immediately in the event of an emergency provided that the District Council will give as much notice as they reasonably can) to ascertain whether the terms of this Agreement are or have been complied with subject to complying with all health and safety and security requirements required by the Owner provided that this right shall cease in relation to any Dwelling on first Occupation of that Dwelling.
- 4.11 Any agreement obligation covenant or Agreement contained herein by any of the parties which comprise more than one person or entity shall be joint and several and where any agreement obligation covenant or Agreement is made with or undertaken towards more

than one person it shall be construed as having been made with or undertaken towards each such person separately.

- 4.12 If any provision of this Agreement is declared by any judicial or other competent authority to be void voidable illegal or otherwise unenforceable the remaining provisions of this Agreement shall continue in full force and effect and the parties shall amend that provision in such reasonable manner as achieves the intention of this Agreement without illegality provided that any party may seek the consent of the other or others to the termination of this Agreement on such terms as may in all the circumstances be reasonable if the effect of the foregoing provisions would be to defeat the original intention of this Agreement.
- 4.13 No variation to this Agreement shall be effective unless made by deed and for the avoidance of doubt the consent, seal, signature, execution or approval of the owner, lessee or occupier of any Dwelling or their mortgagees or chargees or any receiver appointed by a mortgagee or chargee or any person deriving title from them shall not be required to vary any part of this Agreement.
- 4.14 The failure by any party to enforce at any time or for any period any one or more of the terms or conditions of this Agreement shall not be a waiver of them or of the right at any time subsequently to enforce all terms and conditions of this Agreement.
- 4.15 If at any time Value Added Tax ("VAT") is or becomes chargeable in respect of any supply made in accordance with the provisions of this Agreement then to the extent that VAT had not previously been charged in respect of that supply the person making the supply shall issue a VAT invoice to the person to whom the supply was made and the VAT shall be paid accordingly.
- 4.16 This Agreement shall be enforceable as a local land charge and shall be registered immediately by the District Council as such and the District Council covenants with the Owner that following the performance of all of the obligations contained in the Agreement the District Council shall at the District Council's expense forthwith effect the cancellation of all entries made in the Register of Local Land Charges in respect of this Agreement.
- 4.17 In the event that the Owner fails to serve any of the notices that they are required by the provisions of this Agreement to serve then the District Council shall be entitled to payment of the various financial contributions contained in this Agreement at any time following them becoming aware that an event or a level of Occupancy of Dwellings has occurred that would trigger the payment of a contribution and the time period for the return of a contribution shall be extended accordingly.

- 4.18 In the event that a financial contribution or part thereof which is due to be paid to the District Council in accordance with this Agreement is paid later than the date payment is due under the terms of this Agreement then the amount of the financial contribution or part thereof payable by the Owner to the District Council shall in addition include interest at 4% above the Bank of England base lending rate or such other rate as the District Council deems appropriate and shall accrue on a daily basis from the date payment is due until the date payment of the amount due is received by the District Council.
- 4.19 In addition to the requirement in clause 4.18 above in the event that any sum due to be paid to the District Council by the Owner pursuant to this Agreement shall not be received by the District Council by the date that the sum is due then the Owner hereby covenants to pay to the District Council within ten (10) Working Days of receiving a written request all reasonable costs that the District Council has incurred as a result of or in pursuance of such late payment including but not limited to District Council Officer time and any legal costs.
- 4.20 Any obligation contained in this Agreement shall not apply and not have any force nor effect if the Inspector appointed to determine the Appeal finds in the Decision Letter in respect of the Appeal that a particular obligation or part thereof is not a material consideration in the granting of the Planning Permission pursuant to the Appeal or in accordance with the CIL Tests or should the Inspector find in the Decision Letter that a particular obligation as defined or provided for in this Agreement should be deleted or amended so as to ensure compliance with the CIL Tests or to otherwise enable the grant of Planning Permission such contribution and/or obligation in this Deed shall be treated as so amended in accordance with the Inspector's decision.

5 TERMINATION OF THIS AGREEMENT

- 5.1 This Agreement will come to an end if: (a) the Planning Permission is quashed, revoked or otherwise withdrawn or otherwise modified without the consent of the Owner before the Commencement Date; or (b) the Planning Permission expires.
- 5.2 Where the Agreement comes to an end under clause 5.1 the District Council shall at the District Council's expense, on the written request of the Owner, vacate or cancel the entry made in the Local Land Charges register in relation to this Agreement or otherwise record the fact that it has come to an end and no longer affects the Site.

6 NOTICES

6.1 Any notice, demand or any other communication served under this Agreement will be effective only if in writing and delivered by mail by hand or sent by first class post, pre-paid or recorded delivery and is to be sent to the following or to such other address as one party may notify in writing to the others at any time as its address for service:

6.1.1 for the Owner the respective addresses set out above.

6.1.2 for the District Council at their address set out above and marked: (a) for the attention of the Head of Planning and Building Control AND by email to obligations@tendringdc.gov.uk marked for the attention of the S106 Officer; and (b) with the reference for the Planning Permission;

6.2 Unless the time of actual receipt is proved, a notice, demand or communication sent by the following means is to be treated as having been served:

6.2.1 if delivered by hand, at the time of delivery;

6.2.2 if sent by post, on the second Working Day after posting; or

6.2.3 if sent by recorded delivery, at the time delivery was signed for.

6.3 If a notice, demand or any other communication is served after 4.00 pm on a Working Day, or on a day that is not a Working Day, it is to be treated as having been served on the next Working Day.

6.4 Otherwise than in relation to individual purchasers, occupiers and mortgagees of Dwellings and their successors in title the Owner shall give to the District Council within one month of the Owner disposing of any part of the Site written notice of the name and address of the person or persons to whom the Site or part thereof has been transferred provided that this obligation shall cease and determine on the first Occupation of the last Dwelling at the Site.

7 COSTS OF THIS AGREEMENT

Upon completion of this Agreement, the Owner covenants to pay:

7.1.1 to the District Council its reasonable and proper legal costs in a sum not to exceed Two Thousand and Two Hundred Pounds (£2,200.00) (no VAT) in connection with the negotiation and completion of this Agreement; and

7.1.2 to the District Council prior to Commencement of Development the District Council Monitoring Fee.

8 DETERMINATION OF DISPUTES

8.1 Subject to clause 8.7, if any dispute arises relating to or arising out of the terms of this Agreement, either party may give to the other written notice requiring the dispute to be determined under this clause 8. The notice is to propose an appropriate Specialist and specify the nature and substance of the dispute and the relief sought in relation to the dispute.

8.2 For the purposes of this clause 8 a "Specialist" is a person qualified to act as an expert in relation to the dispute having not less than ten years' professional experience in relation to developments in the nature of the Development and property in the same locality as the Site.

8.3 Any dispute over the type of Specialist appropriate to resolve the dispute may be referred at the request of either party to the President for the time being of the Chartered Institute of Arbitrators (or other appropriate President of a professional institute with expertise in the relevant discipline as agreed between the parties in dispute) who will have the power, with the right to take such further advice as he may require, to determine the appropriate type of Specialist and to arrange his nomination under clause 8.4.

8.4 Any dispute over the identity of the Specialist is to be referred at the request of either party to the President or other most senior available officer of the organisation generally recognised as being responsible for the relevant type of Specialist who will have the power, with the right to take such further advice as he may require, to determine and nominate the appropriate Specialist or to arrange his nomination. If no such organisation exists, or the parties cannot agree the identity of the organisation, then the Specialist is to be nominated by the President for the time being of the Chartered Institute of Arbitrators (or other appropriate President of a professional institute with expertise in the relevant discipline as agreed between the parties in dispute).

8.5 The Specialist is to act as an independent expert and:

8.5.1 each party may make written representations within twenty (20) Working Days of his appointment and will copy the written representations to the other party;

- 8.5.2 each party is to have a further fifteen (15) Working Days to make written comments on the other's representations and will copy the written comments to the other party;
 - 8.5.3 the Specialist is to be at liberty to call for such written evidence from the parties and to seek such legal or other expert assistance as he or she may reasonably require;
 - 8.5.4 the Specialist is not to take oral representations from the parties without giving both parties the opportunity to be present and to give evidence and to cross-examine each other;
 - 8.5.5 the Specialist is to have regard to all representations and evidence before him when making his decision, which is to be in writing, and is to give reasons for his decision; and
 - 8.5.6 the Specialist is to use all reasonable endeavours to publish his decision within twenty (20) Working Days from the last submission of evidence.
- 8.6 Responsibility for the costs of referring a dispute to a Specialist under this clause 8, including costs connected with the appointment of the Specialist and the Specialist's own costs will be decided by the Specialist.
- 8.7 This clause 8 does not apply to disputes in relation to matters of law or the construction or interpretation of this Agreement which will be subject to the jurisdiction of the courts of England.

9 COMMUNITY INFRASTRUCTURE LEVY

In the event that the District Council adopts a charging schedule for the purposes of the Community Infrastructure Levy Regulations 2010 and such charging schedule takes effect prior to the date of Planning Permission (or following the grant of Planning Permission a related planning permission is granted pursuant to section 73 of the 1990 Act) the obligations contained in this Agreement which relate to infrastructure covered by the charging schedule shall cease and no longer be of any effect where Community Infrastructure Levy is paid in relation to that infrastructure.

10 JURISDICTION

This Agreement is to be governed by and interpreted in accordance with the law of England and Wales; and the courts of England are to have jurisdiction in relation to any disputes between the parties arising out of or related to this Agreement.

11 SECTION 73

In the event that any new planning permission is granted by the District Council pursuant to Section 73 of the 1990 Act and unless otherwise agreed between the parties:

- 11.1.1 The obligations in this Deed shall relate to and bind any subsequent planning permission in respect of the Site granted pursuant to Section 73 of the 1990 Act and the Site itself; and
- 11.1.2 The definitions of Planning Application, Development and Planning Permission in this Agreement shall be construed to include reference to any application under Section 73 of the 1990 Act, the planning permission granted thereunder and the development permitted by such subsequent planning permission; and
- 11.1.3 This Agreement shall be endorsed with the following words in respect of any future Section 73 application:

"The obligations in this Agreement relate to and bind the Site in respect of which a new planning permission referenced has been granted pursuant to Section 73 of the Town and Country Planning Act 1990 (as amended)"

PROVIDED THAT nothing in this clause shall fetter the discretion of the District Council in determining any application under Section 73 of the 1990 Act or the appropriate nature and/or quantum of Section 106 obligations in so far as they are different to those contained in this Agreement and required pursuant to a determination under Section 73 of the 1990 Act whether by way of a new Agreement or supplemental deed pursuant to Section 106 or Section 106A of the 1990 Act.

12 DATA PROTECTION

The signatories to this Agreement acknowledge and agree that information as to compliance with obligations pursuant to this Agreement (including as to whether or not contributions have been paid) may be passed to:

12.1.1 persons who make enquiries on such matters and who advise that they or their clients are proposing to acquire an interest in the Site and it is acknowledged that the recipients of such information may then disseminate it further;

12.1.2 any person when so required in order to comply with statutory requirements including but not limited to the Freedom of Information Act 2000 and the Environmental Information Regulations 2004.

13 EXECUTION

The parties have executed this Agreement as a Deed and it is delivered on the date set out above.

SCHEDULE 1
RAMS CONTRIBUTION

1 In this Schedule 1 unless the context requires otherwise the following words and expressions shall have the following meanings:

"Natura 2000"	has the meaning ascribed to it in section 3(1) of the Conservation and Habitats and Species Regulations 2017;
"RAMS"	means the Essex Coast Recreation Disturbance Avoidance and Mitigation Strategy (RAMS) in relation to Essex Coast Natura 2000 European Designations Supplementary Planning Document adopted by the Council;
"RAMS Contribution"	means the sum of One Hundred and Sixty Nine Pounds and Forty Five Pence (£169.45) per Dwelling and which sum shall be Index Linked as set out in the RAMS towards the RAMS Contribution Purposes;
"RAMS Contribution Purposes"	means the use of the RAMS Contribution towards the funding of strategic off-site measures identified by the RAMS to mitigate any increased use as a result of the Development in particular the Essex Estuaries Special Areas of Conservation (SAC) and the Colne Estuary (Mid-Essex Coast Phase 2) Ramsar Site. .

2 The Owner hereby covenants with the District Council as follows (unless otherwise agreed in writing):

- 2.1 Not to Commence the Development or cause or permit the Commencement of the Development unless and until the RAMS Contribution has been paid to the District Council.
- 2.2 Payments shall be marked for the attention of the Section.106 Officer, Town Hall, Station Road, Clacton on Sea, Essex, CO15 1SE or via email at obligations@tendringdc.gov.uk.

SCHEDULE 2
AFFORDABLE HOUSING: PART ONE

1 In this Schedule 2 unless the context requires otherwise the following words and expressions shall have the following meanings:

"Affordable Housing" means housing provided to a Person in Housing Need whose needs are not met by the market with eligibility determined with regard to local incomes and local house prices in accordance with the definition of "Affordable Housing" set out in Annex 2 of the National Planning Policy Framework ("NPPF");

"Affordable Housing Commuted Sum" means a sum calculated based on the following formula for the provision of Affordable Housing by the District Council in lieu of on-site provision:

(A-B) = C where:

A = 65% of the Open Market Value of the Affordable Housing Dwellings (unless the Owner can justify a lower percentage to the reasonable satisfaction of the District Council);

B = any costs incurred by the Owner in the marketing or disposal of the Affordable Housing Dwellings; and

C = the Affordable Housing Commuted Sum;

subject to paragraphs 2.8, 2.9 and 2.10 of this Schedule 2

"Affordable Housing Dwellings" means 30% of the Dwellings to be constructed on the Site as part of the Development for Affordable Housing which shall be provided in accordance with the Affordable Housing Scheme (unless otherwise agreed in writing);

"Affordable Housing for Rent" means Affordable Housing Dwellings rented by an Approved Body to Persons in Housing Need and has the meaning ascribed to it in paragraph a) or paragraph b) of the definition of Affordable Housing at Annex 2 of the NPPF;

"Affordable Housing Scheme"

means a scheme to be submitted to and approved in writing by the District Council identifying the locations, size, distribution, plot numbers and agreed tenure mix of the Affordable Housing Dwellings and to provide for the Affordable Housing Dwellings to be constructed, transferred to an Approved Body and used as Affordable Housing

"Approved Body"

means a private registered provider within the meaning of Section 80 of the Housing and Regeneration Act 2008 and which private registered provider is: (a) approved by the District Council in writing; and (b) regulated by the Homes England for the purposes of providing Affordable Housing;

"Capital Receipts"

means proceeds from additional equity shares purchased through Staircasing in tranches of at least five percent (5%) obtained by the Approved Body through Shared Ownership less the Approved Body's costs of acquisition, build, management, sale, the redemption of any mortgage and reasonable legal fees;

"Chargee"

means any mortgagee or chargee or any receiver or manager (including an administrative receiver) appointed by such mortgagee or chargee or any other person appointed under any security documentation to enable such mortgagee or chargee to realise its security or any administrator (howsoever appointed) including a Housing Administrator of the whole or any part of the Affordable Housing Dwellings that have been transferred to an Approved Body;

"Homes England"

means the public body set up to fund and regulate the provision of Affordable Housing in England and any successor body;

"Housing Administrator"

has the meaning ascribed to it in Section 101 of the Housing and Planning Act 2016;

"Housing Needs Register"

means the register maintained by the District Council or its nominee of the Approved Body for Persons in Housing Need;

"Nomination Rights"

means the ability for the District Council to nominate one hundred percent (100%) of the occupants on the first letting of the Affordable Housing for Rent and one hundred percent (100%) of the occupants of subsequent lettings of Affordable Housing for Rent in accordance with the Affordable Housing Scheme, unless otherwise agreed in writing by the District Council;

"NPPF"

means the National Planning Policy Framework December 2024 (or any successor policy) issued by H M Government;

"Open Market Value"

means the best price at which the interest of a Dwelling would have been completed unconditionally for cash consideration on the date of valuation assuming (i) a willing buyer and willing seller; (ii) any restrictions imposed on a Dwelling by this Agreement are disregarded; (iii) there has been a reasonable period within which to negotiate the sale; (iv) the Dwelling has been freely exposed to the market; (v) and both the buyer and the seller acted knowledgeably prudently and without compulsion;

"Persons In Housing Need"

means a person or persons registered on the Housing Needs Register or such other person considered by the District Council or the Approved Body to be in housing need having regard to their income and local house prices and rents and for Shared Ownership Housing a person or persons who are eligible households in accordance with the Homes England Capital Funding Guide (as amended from time to time);

"Protected Tenant"

means any tenant who:

- (a) has exercised the right to acquire pursuant to the Housing and Regeneration Act 2008 or any statutory provision for the time being in force (or any equivalent contractual right) in respect of a particular Affordable Housing Dwelling;

- (b) has exercised any statutory right to buy (or any equivalent contractual right) in respect of a particular Affordable Housing Dwelling;
- (c) has been granted a Shared Ownership Lease by the Approved Body and has become a 100% Staircaser;

"Shared Ownership Housing"

means Affordable Housing Dwellings part sold and part let to eligible households in accordance with the terms of the Shared Ownership Lease;

"Shared Ownership Lease"

means a lease of over 990 years substantially in the form of the Homes England model shared ownership lease from time to time whereby no less than five percent (5%) and no more than seventy five percent (75%) on first purchase of the equitable interest in the Shared Ownership Housing is purchased by a lessee upon completion of such lease and/or raised by a mortgage or charge from a bank or building society and which lease shall include arrangements enabling the lessee to acquire up to one hundred percent (100%) equity share at some future date and which lease shall allow a rent to be charged on the remainder of the equitable interest not purchased such rent not to exceed an annual sum calculated at 2.75% of the value of the equity retained by the Approved Body at the date of the grant of the Shared Ownership Lease or such other figure permitted by Homes England from time to time and where Capital Receipts received is to be retained by the Approved Body and the Approved Body shall use reasonable endeavours to re-invest such Capital Receipts in Affordable Housing as set out in this Schedule 2 subject to any contrary requirements within the Homes England Capital Funding Guide;

"Staircasing"

means the purchase of additional equity shares in an Affordable Housing Dwelling under shared ownership or shared equity arrangement excluding the purchase of the initial equity share in the Affordable Housing Dwelling;

"100% Staircaser"

means a lessee of an Affordable Housing Dwelling under a Shared Ownership Housing or shared equity arrangement who has acquired 100% of the equity in the said Affordable Housing Dwelling through the initial equity share purchased and the purchase of additional equity shares in an Affordable Housing Dwelling;

2 The Owner hereby covenants with the District Council, as follows (unless otherwise agreed in writing):

2.1 To submit the Affordable Housing Scheme to the District Council for approval prior to the Commencement of the Development and not to Commence the Development unless and until the District Council have approved the Affordable Housing Scheme.

2.2 Not to first Occupy (or allow, cause or permit the Occupation of) more than fifty percent (50%) of the Market Dwellings unless and until the identity of the proposed Approved Body has been submitted to and approved by the District Council in writing and the Affordable Housing Dwellings referred to in the approved Affordable Housing Scheme have been:

2.2.1 constructed and in a serviced condition and are available to be Occupied for their intended purpose; and

2.2.2 subject to Paragraphs 2.8 to 2.10 of this Schedule, transferred to the Approved Body and for the purposes of this Schedule only the expression "transferred" shall mean a transfer of the freehold interest (of any house or block of flats) or leasehold interest (of any House or flat in a block that also contains one or more Market Dwellings) that comprises the Affordable Housing Dwellings or an agreement for sale or lease agreed with the Approved Body that has been unconditionally released for completion by the Owner Provided Always that any transfer of the Affordable Housing Dwellings to the Approved Body shall be subject to the provisions contained in Part Two of this Schedule 2.

2.3 To include in the transfer to the Approved Body an obligation that the Approved Body must invest any Capital Receipts received by the Approved body into further Affordable Housing schemes in the district of Tendring unless otherwise agreed in writing by the District Council and subject to any contrary requirements with the Homes England Capital Funding Guide PROVIDED that if after a period of two (2) years from receipt of such Capital Receipts it has not been possible to use such funds within the district of Tendring then to use such funds within any other locality agreed in writing with the District Council for Affordable Housing and if requested to

do so to attend an annual meeting with the District Council's housing representative to review any Capital Receipts received by the Approved Body in that year and to discuss how and where they are to be reinvested.

- 2.4 To enter into a nomination agreement or secure the agreement of the Approved Body to enter into a nomination agreement in a form to be agreed with the District Council in respect of the Affordable Rented Housing to secure the Nomination Rights prior to the first Occupation of the Affordable Rented Housing.
- 2.5 Where the Approved Body has agreed with the Owner to enter into a nomination agreement with the District Council as provided in paragraph 2.4 of this Schedule 2 a copy of that agreement shall be provided to the District Council.
- 2.6 The Affordable Housing Dwellings shall be Occupied for no purpose other than as Affordable Housing save as for the provisions contained in paragraph 2.7 of this Schedule 2.
- 2.7 The Owner confirms and acknowledges that without prejudice to paragraph 2.6 the obligations and restrictions contained in this Schedule 2 shall not bind:
- 2.7.1 a Protected Tenant;
 - 2.7.2 any person or body deriving title through or from a Protected Tenant;
 - 2.7.3 a Chargee of the Approved Body of the whole or any part of the Affordable Housing Dwellings or any persons or bodies deriving title through such Chargee PROVIDED THAT:
 - 2.7.3.1 such Chargee shall first give written notice to the District Council of its intention to dispose of the Affordable Housing Dwellings; and
 - 2.7.3.2 such Chargee shall have used reasonable endeavours over a period of three (3) months from the date of the written notice to complete a disposal of the Affordable Housing Dwellings to another Approved Body or to the District Council for a consideration not less than the amount due and outstanding under the terms of the relevant security documentation including all accrued principal monies, interest and costs and expenses; and
 - 2.7.3.3 if such disposal has not completed within the three (3) month period, the Chargee shall be entitled to dispose of the Affordable Housing Dwellings free from the Affordable Housing provisions in this Agreement which provisions shall determine absolutely.
- 2.8 Where the Owner has used reasonable endeavours to secure a transfer of the Affordable Housing Dwellings in accordance with Paragraph 2.2.2 of this Schedule

to an Approved Body in accordance with the restrictions contained in this Schedule for a period of at least 6 (six) months but has been unable to do so on reasonable prudent and commercially acceptable terms it may provide notice in writing of such to the District Council to include evidence of the reasonable endeavours used.

2.9 Within 20 (twenty) Working Days of receipt of any notice pursuant to Paragraph 2.8 of this Schedule the District Council shall confirm in writing whether it is satisfied that the Owner has complied with the requirements to use reasonable endeavours in accordance with Paragraph 2.8 of this Schedule PROVIDED THAT:

2.9.1 where the District Council does not consider that the Owner has complied with the requirements of Paragraph 2.8 of this Schedule it shall provide reasons to the Owner and in the event of disagreement between the District Council and the Owner either party may refer the matter for determination under Clause 8 of this Agreement; and

2.9.2 where the District Council fails to respond to such notice or fails to provide any written reasons for considering that the Owner has not complied with the requirements of Paragraph 2.8 of this Schedule within 20 (twenty) Working Days of receiving notice in accordance with Paragraph 2.9 of this Schedule then the District Council shall be deemed to have confirmed in writing that it is satisfied the relevant Owner has complied with the requirements of Paragraph 2.8 of this Schedule.

2.10 Where written confirmation of satisfaction is provided by the District Council in accordance with Paragraph 2.9 (or deemed in accordance with Paragraph 2.9.2) of this Schedule, then the Owner may pay the Affordable Housing Commuted Sum to the District Council (the quantum of which shall be agreed between the District Council and the Owner with such agreement not to be unreasonably withheld or delayed) in lieu of providing the Affordable Housing Dwellings and upon payment the Affordable Housing Dwellings as shall be released from all obligations in this Schedule and the Owner shall be free to dispose of such units as Market Dwellings

2.11 Where Paragraph 2.10 of this Schedule 2 applies not to first Occupy (or allow, cause or permit the Occupation of) more than fifty percent (50%) of the Market Dwellings unless and until the Affordable Housing Commuted Sum has been paid to the District Council.

SCHEDULE 2 - AFFORDABLE HOUSING: PART TWO

1 The transfers of the Affordable Housing Dwellings to the Approved Body shall be with vacant possession.

2 The transfer deed shall contain:

- 2.1 The Affordable Housing Dwellings shall be Occupied for no purpose other than as Affordable Housing save as for the provisions contained in paragraph 2.7 of Schedule 2 of this Agreement;
- 2.2 a grant by the Owner of all rights of access and passage of services and all other rights reasonably necessary for the beneficial use and enjoyment of the Affordable Housing Dwellings;
- 2.3 a reservation of all rights of access and passage of services and rights of entry reasonably necessary for the purpose of the Development and the beneficial use and enjoyment of the remainder of the Site;
- 2.4 such other covenants and reservations as the Owner may reasonably require including but not limited to the maintenance of the Development once it is completed and the preservation of the appearance thereof;
- 2.5 a covenant to comply with paragraph 2.3 of Part One of Schedule 2 of this Agreement in respect of Capital Receipts received by the Approved body in respect of Shared Ownership Housing or other shared equity arrangement.

SCHEDULE 3
BNG MONITORING FEE

1 In this Schedule 3 unless the context requires otherwise the following words and expressions shall have the following meanings:

- "Biodiversity Gain Plan"** means the plan submitted to and approved by the Council to satisfy the Development's biodiversity net gain requirements pursuant to Schedule 7A of the TCPA 1990;
- "Biodiversity Gain Land Monitoring Contribution"** means the sum of Twelve Thousand and Six Pounds and Eight Pence (£12,006.08) Index Linked to be paid by the Owner to the District Council in accordance with Schedule 3 of this Agreement and to be applied by the District Council as a financial contribution towards the District Council's costs of monitoring the implementation and ongoing compliance of the maintenance of the On-site Habitat Creation and Enhancement Works in accordance with the Biodiversity Gain Plan and HMMP to be approved by the District Council through the discharge of conditions of the Planning Permission as may be granted on appeal.;
- "On-site Habitat Creation and Enhancement Works"** means the habitat creation and enhancement works set out in the Habitat Management and Monitoring Plan (excluding any management or monitoring activities specified in the Habitat Management and Monitoring Plan);
- "Habitat Management and Monitoring Plan (HMMP)"** means the document titled 'Habitat Management and Monitoring Plan' to be approved the District Council through the discharge of condition(s) of the Planning Permission as may be granted on appeal.

3 In the event that On-site Habitat Creation and Enhancement Works are to be delivered on the Site, the Owner hereby covenants with the District Council not to Commence the Development or cause or permit the Commencement of the Development unless and until the Biodiversity Gain Land Monitoring Contribution has been paid to the District Council (unless otherwise agreed in writing).

- 4 The Owner requires the District Council to use the Biodiversity Gain Land Monitoring Contribution for no other purpose than the purpose of monitoring implementation and ongoing compliance of the Biodiversity Gain Plan in accordance with the Habitat Management and Monitoring Plan.
- 5 Notifications and payments shall be marked for the attention of the Section 106 Officer, Tendring District Council, Town Hall, Station Road, Clacton-on-Sea, Essex, CO15 1SE or via email at obligations@tendringdc.gov.uk

SCHEDULE 4
DISTRICT COUNCIL COVENANTS

The District Council covenants with the Owner as follows:

- 1 At the written request of the Owner the District Council shall provide written confirmation of the discharge of the obligations contained in this Agreement when satisfied that such obligations have been performed
- 2 The District Council will place any Affordable Housing Commuted Sum received in an interest bearing account and apply it and any interest accrued only towards the purposes for which it was paid
- 3 In the event that any Affordable Housing Commuted Sum that the District Council has received has not been committed (by way of contract or otherwise) to the purpose for which it was paid within 10 (ten) years of final Occupation of the Development then the District Council shall following receipt of a written request to do so repay to the person that made the payment so much of the relevant contribution as shall remain uncommitted together with any interest accrued (calculated using the SONIA rate or alternative rate confirmed by the District Council).
- 4 The District Council shall within 20 (twenty) Working Days of written request provide to the Owner details of the expenditure of any Affordable Housing Commuted Sum paid to and retained by the District Council pursuant to this Agreement.

ANNEX ONE - SITE PLAN

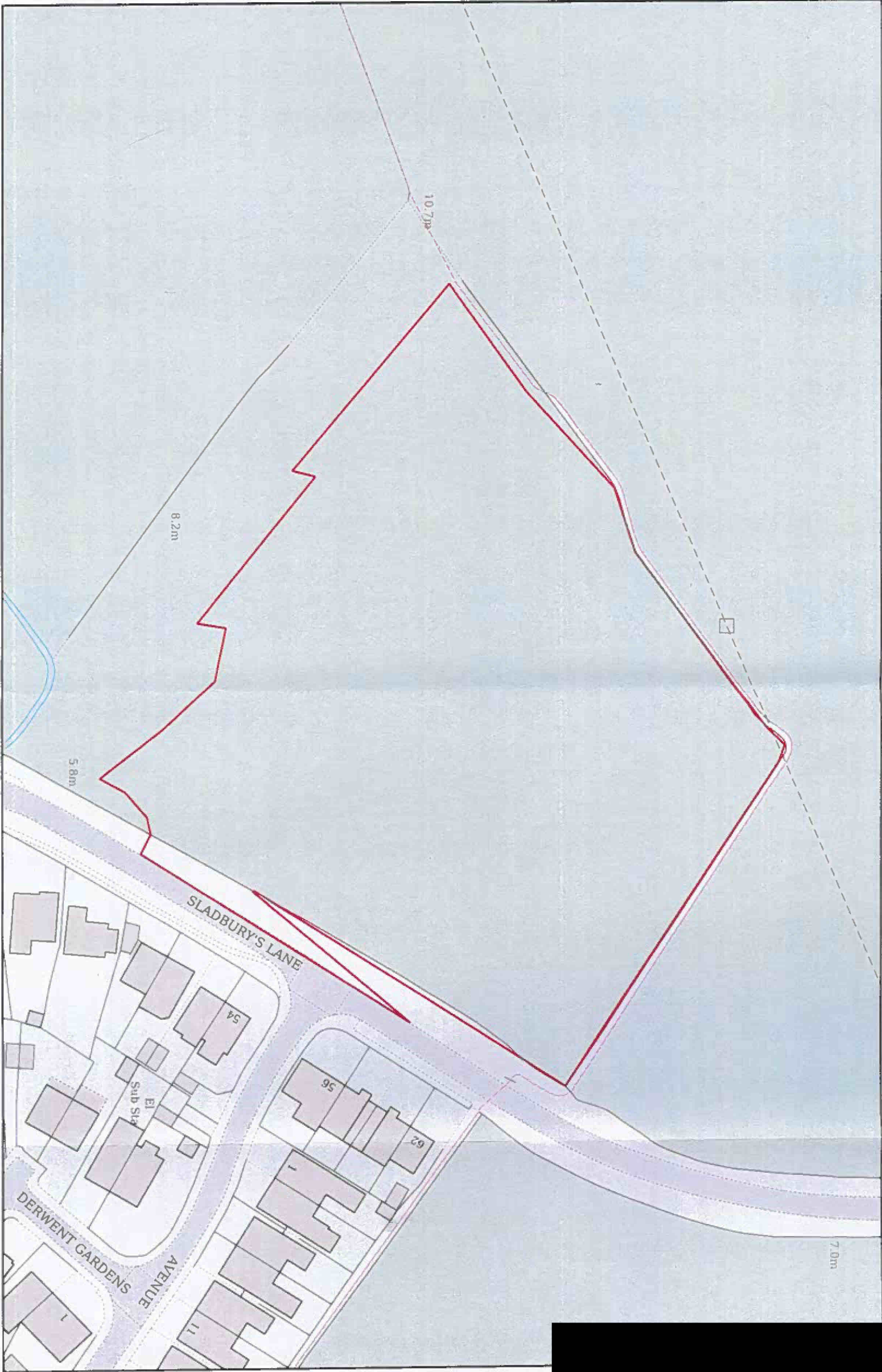
Location Plan

Site Address: Easting: 619076 Northing: 216772



Date Produced: 14-Aug-2025

Scale: 1:1250 @A4



Planning Portal Reference: PP-14148518v3

